

The La Palma Record: A Decade of Broken Promises, Resisted Transparency, and Unaccountable Governance

A fact-based summary for La Palma voters ahead of the November 3, 2026 election

Prepared July 2026; the Measure JJ pension section was updated August 2026 to incorporate CalPERS' June 30, 2024 actuarial valuations. Every factual claim in this document is drawn from public records, the City of La Palma's own published documents and news releases, sworn trial testimony, campaign finance filings and consultant records obtained by public records request, court filings, or published reporting by Voice of OC, the Event-News Enterprise, and Los Cerritos Community News. Full references appear at the end.

Why this document exists

On November 3, 2026, La Palma voters will fill the District 2 and District 4 seats on the City Council. Before casting a ballot, voters deserve a complete accounting of how this council and this city government have actually performed over the past decade — not the version presented in city newsletters, but the version documented in court records, audited financial statements, campaign finance filings, and independent journalism.

That record tells one consistent story: a city government that made promises to voters and broke them, resisted every meaningful form of public oversight until forced by state law to comply, structurally reduced the public's opportunities to participate, gave residents inaccurate information from the dais and in campaign materials, spent public money crafting and promoting a ballot measure that benefited the incumbents who approved it, and presided over institutional failures toward its own employees that have now produced an \$8.4 million jury verdict and a second pending employment lawsuit — and separately faces a pending \$30 million wrongful-death claim over a December 2024 police pursuit.

The Record, Organized by Theme

The same decade of events reads two ways: strictly by date, or by the thread each event belongs to. Grouping by theme makes the pattern in each thread easier to follow; a few events belong to more than one thread and are cross-referenced rather than repeated. Exact dates remain the anchor within each section.

1. Term Limits: From 1996 to Measure W

Covers the original 1996 term limits, the 2019 attempt to extend them, and the 2024 Measure W campaign — its placement on the ballot, its taxpayer-funded outreach, its private funding, the sign-enforcement dispute that ran alongside it, and the ordinance change that followed.

1996 — La Palma voters ratify **two-term (8-year) consecutive term limits** for City Council members, approving Measure O with **nearly 80% of the vote**. The structure adopted: two four-year terms, followed by **a mandatory four-year waiting period** before a former member could run again.

August 20, 2019 — The council's first attempt to extend term limits reaches the dais. At a study session, Councilmember Nitesh Patel — who tells the council he requested the item and is “neither in support or opposed” — opens a discussion on extending council terms from two consecutive terms to **three (12 years total)** and cutting the mandatory cooling-off period between terms from four years to two. Councilmember Goedhart, who is not seeking re-election himself, moves to direct staff to prepare a ballot measure for the March 2020 municipal election reflecting that change. The motion carries **3-0** (Goedhart, Goodman, Steggell), with Mayor Pro Tem Kim and Councilmember Patel abstaining. Mayor Goodman tells the room there is “no nefarious intent” behind the council's interest in the idea.

September 3, 2019 — Two weeks later, residents turn out in force to stop it. The council takes up Resolution No. 2019-40, which would place the three-term, two-year-cooling-off proposal before voters at the March 3, 2020 election. *Eleven residents address the council on the item* — nearly all of them opposed — including Robert Carruth, who asks that the item be tabled permanently, and letters read into the record from former Councilmember Steve Hwangbo and resident Steve Maikoski, both opposing the extension. Facing that turnout, Mayor Pro Tem Kim states on the record that he does not support the proposal and hopes it is tabled; Councilmember Patel says his earlier abstention was specifically to let public input come in before he took a position; Councilmember Goedhart says he personally favors longer terms in principle but that this is not the time to move forward. Mayor Goodman then moves to table the resolution indefinitely; Patel seconds; the council votes *unanimously, 5-0*, to kill it. The measure never reaches the March 2020 ballot. No source reviewed for this document shows the council revisiting the underlying idea's merits when it reversed course — only that the reversal followed the public turnout. Five years later, a similar proposal — again framed around continuity and leadership experience, again advanced by a subset of the sitting council — would return as Measure W, this time without the same scale of advance public pushback, and would reach the ballot and pass. See the June 4, 2024 entry below.

April 4, 2024 — Before the City ever executed a contract to draft a term-limits ballot measure, it asked residents directly what they thought of the idea — and did not act on the answer. The City hosts a “Community Conversation” at the La Palma Community Center, drawing over 80 attendees and 12 of the City's civic partners, committees, and volunteer organizations, with interactive polling stations on topics including City communication, district elections, term limits, and volunteerism. At the term-limits station, attendees placed a sticker on one of four options: keep the existing two-term, 8-year limit; increase it to three or more consecutive terms (12+ years); eliminate term limits entirely; or reduce the limit below two terms. By a margin of *26 to 19*, attendees preferred keeping or lowering the existing term limits over increasing or eliminating them — a majority against the very change the council would soon send to voters. One month and four days later, the City executed its consulting agreement with Tripepi Smith to draft a ballot measure increasing term limits — see the entry below — and the council placed that measure on the ballot on June 4, 2024, despite the feedback its own event had just collected. Councilmember Nitesh Patel would go on to form and lead the Yes on W committee shortly after the council's vote to place the measure on the ballot.

May 8, 2024 — Nearly a month before the City Council ever voted publicly to place a term-limits measure on the ballot, the City executes a consulting agreement with Tripepi Smith for “Outreach Services on a potential ballot measure to adjust term limits” — time-and-materials, *not to exceed \$20,000*, with firm president Ryder Todd Smith as project manager reporting to the Assistant City Manager. City calendar records show weekly check-in calls between the consultant and the City Manager's office beginning in May. The consultant's May invoice — billed to “PROJECT: City of La Palma – Term Limit 2024 Ballot Measure” — shows Ryder Todd Smith personally billing the City for “drafting ballot language options” and drafting the press release announcing the council's ballot resolution. In other words: before any public vote, taxpayers were already paying a communications firm to write the measure's ballot language and script its rollout.

June 4, 2024 — The council votes *4-1* (Keo Conklin dissenting) to place Measure W on the November ballot, extending council term limits from *8 to 12 consecutive years* — the same three-term structure the council itself had proposed and then tabled in 2019 after the public turnout described above. Keo Conklin later tells Voice of OC that “residents did not call for the term increase”; it was pushed by her council colleagues. The measure is branded the “Election Reform and Voter Choice Measure” — branding that appears throughout the consultant's taxpayer-funded work product.

The consultant-crafted 75-word ballot question voters saw leads entirely with benefits — “To expand the ability of La Palma voters to choose who is elected to city council; provide the opportunity for more consistent community leadership; and broaden the candidate pool...” — and never states the two facts that mattered most. First, that it extends allowable consecutive tenure from 8 years to 12. Second, and most consequentially, that the

terms sitting council members had already served would not count: the ordinance's own text applies the new limits only to terms “commencing with” the November 5, 2024 election, and the City Attorney's impartial analysis states plainly that “**current members of the City Council will be provided with a fresh set of three (3) four-year terms.**” Voice of OC calculated the practical effect: **incumbents could serve up to 20 years.** That incumbent-reset provision appears nowhere in any of the taxpayer-funded outreach materials — not the FAQ sheet (produced in English, Spanish, and Korean), not the utility bill insert mailed to every household, not the citywide mailer, not the news release. A La Palma voter relying on the City's own materials was never told the measure restarted the clock for the people who put it on the ballot. The only place that fact appeared was the impartial analysis buried in the county voter information guide.

How the reset was written into the measure — Measure W did not simply raise the limit from two terms to three; it was drafted so that terms already served did not count toward the new limit at all. Under the 1996 structure, a councilmember who had served two four-year terms (8 years) hit the cap and owed the electorate a mandatory four-year break before running again. Measure W's operative text applies the new three-term, 12-year limit only to terms “commencing with” the November 5, 2024 election — meaning a sitting councilmember's prior 8 years of service is treated, for term-limit purposes, as if it never happened. The practical result the drafting produced: a councilmember already partway through or finishing an 8-year run could be re-elected in November 2024 and serve three additional four-year terms on top of the years already served — up to **20 consecutive years in office** — without ever triggering the cooling-off period the original 1996 measure was written to guarantee. This was not a side effect of raising the cap; it was the specific mechanism the ordinance's own text used to raise it, and it is the single fact the taxpayer-funded outreach campaign never disclosed to voters.

June 12, 2024 — Eight days after the vote, the City issues Purchase Order #22959 for “Ballot Measure Services” to Tripepi Smith in the amount of **\$25,000 — \$5,000 above** the contract's stated not-to-exceed — charged to the General Fund (account 001-120-6000) and signed by the City Manager and Assistant City Manager.

May–September 2024 — Tripepi Smith invoices the City monthly, every line item billed to the “Term Limit 2024 Ballot Measure” project: \$4,893.75 (May), \$7,116.50 (June), \$3,345.00 (July), \$1,368.75 (August), and \$1,367.50 (September) — **\$18,091.50 in documented public funds** — for ballot language drafting, website copy, press releases, the citywide mailer, the trilingual FAQ sheet, the utility bill insert, Spanish translation, social media content, and monitoring of posts. California law permits public agencies to spend public money on neutral, informational materials about ballot measures, but prohibits spending public funds on campaign advocacy (Gov. Code § 54964; *Vargas v. City of Salinas* (2009) 46 Cal.4th 1). Whether one-sided materials that were branded “Election Reform and Voter Choice,” framed exclusively around benefits, and silent on the incumbent reset stayed on the lawful side of that line is a question voters — and the FPPC — are entitled to ask. Notably, the records the City produced in response to a Public Records Act request about the consultant engagement included drafts of the ballot “Argument in Favor” and the “Rebuttal to Argument Against” — the formal advocacy documents — sitting in the City's own consultant-engagement files.

October–November 2024 — Campaign finance filings (FPPC Forms 460 and 497, obtainable only by public records request) document who was actually behind “Yes on W.” These are not press characterizations; the following comes directly from the committee's own sworn filings:

Councilmember Nitesh Patel was the Treasurer of the Yes on Measure W committee (FPPC ID #1474110), signing its campaign statements under penalty of perjury. The committee's official address on the filings — **5021 Shirley Drive, La Palma — is Patel's own residence**, and the committee's contact email is his personal Gmail address.

The committee's October 24, 2024 Form 460 reports **\$24,500** in monetary contributions raised calendar-year-to-date through October 19, with about \$22,960 already spent. Press accounts of the complete filings put the final total at **approximately \$26,500** — most of it from sitting council members and the Patel family.

Schedule A of that filing itemizes contributions from Nitesh Patel himself (employer: Devi Construction, Inc.), Niti Patel (**\$5,500** — same Shirley Drive address, affiliated with Ram Tulsi, LLC), and Waldman Tax & Financial Services, 7861 Valley View Street (**\$1,000**) — the business and address of sitting Councilmember Mark Waldman, matching his own candidate Form 460 on file with the City Clerk. Earlier filings reported by the press include \$5,000 from Nitesh Patel and \$5,500 from his brother Vikesh Patel — the incoming District 3 councilmember, who won his seat running unopposed and whose own Form 470 declared he anticipated raising and spending under \$2,000 on his campaign — and \$2,500 from another Patel at the same address.

Per the Form 460 and 497 filings, contributions of **\$5,500** from the Orange County Professional Firefighters Association, IAFF Local 3631 — the union representing Orange County Fire Authority firefighters — were routed to Yes on W through the candidate campaign committees of Councilmember Debbie Baker and Vikesh Patel rather than given to the measure committee directly. The relevance of the fire union's interest: Nitesh Patel represents La Palma on the Orange County Fire Authority Board of Directors, the body that governs the budget and labor relations affecting Local 3631's members — and he has since been elected **Vice Chair of the OCFA Board** and chairs its Budget and Finance Committee, positions announced by the City of La Palma itself. So the money of the union whose pay and working conditions are shaped by the OCFA board helped fund — through the committees of Patel's council colleague and Patel's brother — a ballot measure extending the tenure of the La Palma official who now helps lead that board. No evidence of any agreement or coordination between the union and Patel has been presented, and this document does not allege one. But the appearance of intertwined interests created by this money flow is precisely what campaign finance disclosure laws exist to expose, and voters are entitled to weigh it — especially because none of it was volunteered; every piece had to be extracted through records requests.

Adrian A. Ibarra, an attorney with overlapping business and professional ties to Nitesh Patel, also contributed **\$1,500** to the Yes on W committee in the same period. California State Bar, California Secretary of State, and archived-website records show both men held leadership roles at Patel's now-defunct online law school, the American International School of Law (Patel: CEO, Administrator, Registrar, and de facto Dean; Ibarra: Academic Dean and faculty; both listed as Board Members). Records also show the two co-own a building at 17762 Cowan in Irvine — the same Irvine address Patel's Devi Construction, Inc. lists on its own Yes on W contribution, described above — where Ibarra's law firm, Shatford Law, is based; and share ISP Holdings LLC (Patel as Manager and Registered Agent, Ibarra as Manager) and Eoto Inc. (Patel as President/CEO, Ibarra as Vice President). A third individual, Andy Szeto, recurs alongside both men across several of these entities. None of this establishes that Ibarra's contribution was anything other than what the filing states — a personal gift from an attorney and business associate of the committee's treasurer — and no evidence of any agreement, coordination, or unlawful conduct is alleged here. It is presented because the campaign finance disclosure laws exist so that readers can see the full network of relationships behind a contribution, not only its dollar amount.

In total, **the money of at least three of the five sitting council members** — Patel, Baker, and Waldman — flowed into the campaign to extend their own allowable tenure.

Schedule E shows where the money went: nearly all of it to paid slate-mail operations whose names are engineered to resemble independent voter guides — “Budget Watchdogs,” “California Voters Guide,” “Senior Advocate,” “Election Digest,” and “Voter Newsletter” (five entities sharing a single Torrance address) — plus **\$13,288** to DTN Tech and additional payments to 3AM Communications and Walking Man, all for “Mailers and Walk Pieces.” Voters receiving a mailer from “Budget Watchdogs” or “Senior Advocate” endorsing Measure W had no way of knowing the endorsement was purchased by a committee run out of a councilmember's house and funded by the incumbents the measure benefited.

Campaign signs and mailers positioned the measure as a matter of public safety and “government reform.” Direct-mail pieces sent under the “Yes on W — Reform Government Now!” brand carried the headline “La Palma’s First Responders Urge You to Vote Yes on W,” paired with photos of police officers and firefighters and the insignia of the La Palma Police Association and the Orange County Professional Firefighters Association, IAFF Local 3631 — the same union whose \$5,500 contributions, described above, reached the campaign by way of council members’ own candidate committees. The mailers list five promised effects of a Yes vote, including that Measure W would “maintain term limits for La Palma’s elected officials.” Neither mailer discloses what the measure’s own text and the City Attorney’s impartial analysis state plainly and what this record documents above: Measure W extended the limit from 8 to 12 consecutive years and reset the clock for sitting members, letting them serve up to 20 years total. Councilmember Keo Conklin’s assessment, on the record: “It’s deceptive and not transparent.”

Patel, who was terming out, declined to answer reporters’ questions about the measure or about whether two brothers serving together on the council warranted additional transparency. Baker and Waldman did not respond to press inquiries at all.

Unlike other cities that post campaign finance data on their websites, La Palma required a public records request just to see who funded the campaign.

September–October 2024 — the sign-enforcement dispute, documented in the City’s own words. Under the temporary-sign law the council adopted in December 2021 (signed by then-Mayor Nitesh Patel), erecting a temporary sign on non-residential property requires an approved City permit. As the Measure W campaign peaks, that rule becomes the center of a dispute that plays out in formal legal correspondence — and ends with the City Attorney placing key admissions in writing.

On or about September 16, 2024, *City Manager Conal McNamara personally removes* a “No on W” sign from the public right-of-way; a uniformed La Palma police officer is later sent to return it. This is not a resident’s allegation: the City Attorney’s October 15 response letter confirms the City Manager removed the sign, offering as the sole explanation that the City Clerk — who “would typically be involved” in such removals — *“was not available that day.”*

October 1, 2024 — Attorney Adam Sechooler, retained by resident Robert Carruth — spokesperson for a group of residents, including former La Palma mayors, opposing Measure W — serves the City a demand letter warning of First Amendment liability. The letter documents the McNamara sign removal, states that unpermitted “Yes on W” signs stood at non-residential locations across the city (near the Walmart, Coffee Bean & Tea Leaf, and La Capilla restaurant, among others) despite repeated enforcement requests the City rebuffed with “a vague reference to supposed ‘custom,’” and demands that the City either enforce its ordinance or decline to enforce it — neutrally, as to all viewpoints. It warns that continued selective enforcement could expose “individual staff or members of the La Palma City Council” to action under 42 U.S.C. § 1983.

October 15, 2024 — City Attorney Ajit Thind responds in writing (Colantuono, Highsmith & Whatley file no. 42034.0011). The letter denies any constitutional violation and insists the City’s enforcement has been content-neutral — but in mounting that defense, it makes three statements now on the record over the City Attorney’s own signature. First, an admission of years of non-enforcement: “City staff has not enforced a ‘permit’ requirement in the LPMC against various kinds of small signs on non-residential property *for several years*” — meaning the sign law on La Palma’s books was not the law its government actually applied, under an unwritten enforcement practice known to staff but invisible to any resident reading the municipal code. Second, confirmation that the City Manager personally removed the opposition sign, with no explanation offered beyond the Clerk’s unavailability — and no explanation at all of why the City’s chief executive, whose office was simultaneously administering the taxpayer-funded Measure W outreach contract, was personally pulling a sign opposing the measure his council majority was funding. Third, an announcement — made mid-campaign, in direct response to a legal demand — that City staff “has already been working on an amendment to the LPMC to

exempt small temporary signs on non-residential properties, regardless of their content, from any permit requirement,” which “will codify staff’s historical interpretation,” with first reading expected at the November council meeting. The same letter responds to the residents’ legal demand in part by attacking the resident personally, asserting that Carruth “has a history of making complaints that have been unsubstantiated but have caused a tremendous drain on staff resources.” And it encloses photographs of unpermitted “No on W” signs — arguing that measure opponents benefited from the same non-enforcement, while confirming the City had removed none of them.

October 22, 2024 — Sechooler replies, noting that the City’s claim of years of content-neutral non-enforcement is irreconcilable with its chief executive personally removing an opposition sign in the middle of the campaign. The reply further asserts — an attorney’s stated-on-information-and-belief representation, and labeled here as such — that numerous “Yes on W” signs were placed on non-residential property without the property owners’ consent, that the City refused repeated requests to act, and that owners at a prominent location ultimately removed the signs themselves. It rejects the personal attack on Carruth as an unwarranted ad hominem, and closes by reserving the option of litigation.

The Event-News Enterprise, reporting on the dispute, sought comment from the Mayor, the City Manager, and City Attorney Thind and received no response by press time — the City answered its residents’ lawyer, but not the public. The episode is of a piece with the rest of the Measure W record: the machinery of the City itself — permits, code enforcement, staff discretion — deployed unevenly around the measure its own council majority was funding. What began as a resident’s allegation ended with the City’s own attorney confirming the central facts: a permit law that had gone unenforced for years, a City Manager who personally removed an opposition sign, and an amendment to erase the rule already being drafted while the campaign was underway.

Measure W passes with roughly 58% of the vote. The council members who funded the campaign are its direct beneficiaries.

December 10, 2024 — the rule quietly changes. Five weeks after the election, the council adopts Ordinance 2024-04, which — among a large set of state-mandated housing and zoning updates — removes the very permit requirement the “Yes on W” signs had been accused of violating. The 2021 sign code (signed by then-Mayor Nitesh Patel) required a City permit for temporary signs on non-residential property; the October 2024 demand letter alleged the council-backed committee’s signs had gone up on commercial properties without those permits while the rule was enforced against others. Ordinance 2024-04 adds a new exemption: temporary signs of six square feet or less “are exempt from the requirement to obtain a permit,” with up to three allowed on any non-residential property. In other words, the conduct the residents’ attorney had flagged as a violation was, weeks later, redefined as permissible. And the amendment’s origin is not a matter of inference: the City Attorney’s own October 15 letter announced, in direct response to the residents’ legal demand, that staff was “already been working on” the exemption to “codify staff’s historical interpretation” — with first reading expected in November. The ordinance’s first reading came on ***November 5, 2024 — election day itself*** — and adoption followed on December 10. The documented sequence is what it is, and readers can weigh it: the City created the permit rule in 2021; a council-majority-backed committee was accused of violating it in October 2024; the City Attorney announced the fix mid-campaign in a letter responding to that accusation; and in December 2024 the City amended the rule out of existence. Two facts cut the other way and are stated here in fairness — the amendment was adopted after the election, so its legal effect could not have helped the Yes-on-W signs during the campaign, and the signage exemption was folded into a much larger ordinance (2024-04) whose main purpose was compliance with state housing law. Whether the small-sign exemption was routine cleanup or a convenient fix for an embarrassing enforcement dispute is a judgment the record lets each voter make; what is not in dispute is that the rule the incumbents’ own committee was accused of breaking is no longer on the books — and that the City’s lawyer announced the plan to erase it in the same letter in which he defended the City’s conduct.

May–July 2026 — The same union gives **\$5,900** directly to Patel's 2026 re-election committee, Nitesh Patel For La Palma City Council 2026 District 2 (FPPC ID #1490903), received May 29, 2026 — the committee's only itemized contribution for the first half of 2026, and, unlike the 2024 Measure W contributions, given directly to Patel's own committee rather than routed through a colleague's campaign. As above, no evidence of any agreement, coordination, or unlawful conduct has been identified in the records reviewed for this document, and none is alleged here; the fact pattern is presented so voters can weigh Patel's continuing financial relationship with a union whose members' pay and working conditions he helps oversee as OCFA Board Vice Chair.

2. Measure JJ and the Pension Record

Covers the 2016 pension-tax promises and the one point in the record where those promises were checked against the City's own audited numbers.

November 2016 — The City Council places Measure JJ, a permanent 1% sales tax, on the ballot. Opponents warn it is a “pension tax.” Proponents — including sitting council members — promise voters the tax will **pay off the City's unfunded pension debt in 9 years**, save the city \$20 million, rebuild reserves, establish a pension stabilization fund, restore services, and lower the Utility Users Tax. Voters approve it. The City's unfunded pension liability (UAL) at the time: **approximately \$18.2 million (FY 2016-17)**.

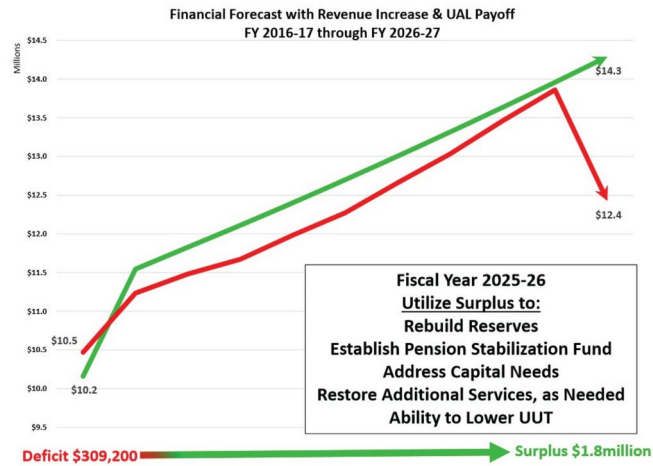
August 5, 2025 — A resident asks the council for the current amount of the unfunded pension liability. The Interim City Manager cannot answer. Then-Mayor Pro Tem Nitesh Patel states from the dais that the liability has **“gone down”** due to discretionary payments. **This is false.** The City's own audited financial reports show the UAL rose from **\$18.2 million** in FY 2016-17 to **\$23.6 million** in FY 2023-24 — a **29.8% increase** — while the required annual employer contribution also grew. No council colleague corrects the record. The nine-year payoff promised to Measure JJ voters would have come due that same year. Neither staff nor the council has ever provided a public accounting of Measure JJ promises versus results.

The campaign's own chart — The committee that ran the 2016 Yes on Measure JJ campaign published its own financial forecast, titled “What Fiscally Sound Looks Like,” projecting the City's emergency-fund and reserve trajectory under the tax: a jump from a documented \$309,200 deficit to a projected \$1.8 million surplus by Fiscal Year 2025–26, a General Fund balance climbing from roughly \$10.2 million (FY 2016–17) to \$14.3 million (FY 2026–27) under the plan, and a promise that “with Measure JJ ending the depletion of reserves, the city has a plan to take that emergency fund, pay off the debt in 9 years and save the city \$20 million.” The chart earmarked the projected FY 2025–26 surplus for four specific purposes: rebuilding reserves, establishing a Pension Stabilization Fund, addressing capital needs, and, eventually, lowering the Utility Users Tax.

What Fiscally Sound Looks Like

Yes on Measure JJ - La Palma · Last edited May 5, 2021
· 2 minute read

off the debt in 9 years and save the city \$20 MILLION.



Look how huge that drop off is! City Manager Laurie Murray states that it is her intention to recommend using that surplus to rebuild reserves, restore services, and reduce the Users Utility Tax.

There's no changing the past. We can only take action today for a better future.

The Yes on Measure JJ committee's own financial forecast, published on its campaign website (archived page, last edited May 5, 2021), including the page's accompanying text naming City Manager Laurie Murray's stated intention for the projected surplus. The chart projects the emergency-fund/reserve trajectory under the tax and states the plan to "pay off the debt in 9 years and save the city \$20 million."

The promise, attributed to the City Manager by name — As shown above, the committee's page names a specific city official as the one committed to acting on the chart's projected surplus: it states that City Manager Laurie Murray intended to recommend directing the FY 2025–26 surplus toward rebuilding reserves, restoring services, and lowering the Utility Users Tax, closing with the line that the past cannot be changed but today's action can build a better future. Murray retired effective December 19, 2019 — see Leadership Transitions, above — nearly six years before the fiscal year in which the campaign's own chart said she would make that recommendation. The official the campaign named as responsible for delivering the promised surplus left office long before the year the promise came due.

CalPERS' June 30, 2024 actuarial valuation — The most recent actuarial valuations CalPERS has published for the City's two pension plans — Safety (Police) and Miscellaneous — set required contributions for Fiscal Year 2026–27, the same fiscal year the campaign's own chart identified as the year of the promised payoff and surplus. These valuations are prepared on a different basis than the ACFR-sourced Net Pension Liability figures cited above — CalPERS measures funding-basis UAL against the market value of plan assets, while audited financial statements use the GASB 68 basis — so the two sets of figures are not directly interchangeable, and both are presented here on their own terms. Per CalPERS' own June 30, 2024 reports for the City of La Palma:

- Combined unfunded accrued liability (UAL), both plans, as of June 30, 2024: \$25,322,950 (\$15,539,980 Safety + \$9,782,970 Miscellaneous) — not paid off, and higher in dollar terms than the \$15,583,758 combined UAL shown in CalPERS' own funding-history tables for June 30, 2015, the earliest year those reports show.

- Combined funded ratio: 73.4% (Safety 71.5%, Miscellaneous 75.9%) — more than a quarter of the liability remains unfunded.
- Combined required UAL payment, FY 2026–27 alone: \$2,545,854. CalPERS’ own projections show that payment rising, not falling, through at least FY 2031–32, to a combined \$2,999,000.
- Time to pay off the current UAL at minimum required payments, per CalPERS’ own “Additional Employer Contributions” analysis in each report: 15.5 years on the Safety plan and 14.3 years on the Miscellaneous plan from the FY 2026–27 valuation date — payoff around 2040–2041, roughly three decades after Measure JJ passed, not nine years.
- CalPERS’ current amortization schedule for the Safety plan alone extends to Fiscal Year 2043–44 and shows \$7,927,851 in interest still projected to be paid on that plan’s UAL under the existing schedule — the opposite of the “\$20 million saved” the campaign promised. No public accounting showing \$20 million in realized savings, in any form, has been identified in the record reviewed for this document.

Promise vs. documented result — The comparison below places the campaign’s specific, quantified commitments next to what CalPERS’ own records show nine years later.

Measure JJ Campaign Promise (2016)	Documented Result (CalPERS actuarial valuation, as of June 30, 2024)
“Pay off the debt in 9 years” (by FY 2025–26)	Combined UAL \$25,322,950 across both plans as of 6/30/2024. CalPERS’ current amortization schedule does not project payoff until roughly FY 2040–41 on the Safety plan — about three decades after the vote, not nine years.
“Save the city \$20 million”	No public accounting of any realized savings has been identified in the records reviewed for this document. CalPERS’ current schedule shows \$7,927,851 in interest still projected to be paid on the Safety plan’s UAL alone.
Required annual payment declining as the debt is retired	Combined required UAL payment is \$2,545,854 for FY 2026–27. CalPERS projects that payment rising — not falling — to \$2,999,000 by FY 2031–32.
Reserves rebuilt; Pension Stabilization Fund established; ability to lower the Utility Users Tax (all promised for FY 2025–26)	Not addressed by the CalPERS actuarial data, which covers the pension plans only, not the General Fund. See note below.

A note on what this comparison does not cover — Two figures in the committee’s chart — the FY 2025–26 General Fund deficit-to-surplus swing and the dollar reserve trajectory shown on the green and red lines — describe the City’s General Fund balance rather than the pension liability itself, and are not addressed by the CalPERS actuarial data above. Verifying those specific figures would require the City’s audited FY 2025–26 financial statements, which had not yet been reviewed for this document as of this writing. What CalPERS’ own valuations do establish without that additional data is that the specific, headline commitment at the center of the chart — “pay off the debt in 9 years” — was not met: nine years after the promise, the pension debt is larger in dollar terms than CalPERS’ own earliest reported figure, and CalPERS’ own current schedule does not project payoff for another decade or more.

3. Leadership Transitions: City Manager, Police Chief, and City Attorney

Covers every change of City Manager, Police Chief, and City Attorney across the decade — the pattern of internal promotions, limited public explanation, and absence of competitive searches that recurs across all three roles.

November 17, 2015 — The City Council appoints Laurie Murray as City Manager, an internal promotion: hired in 2006 as the City’s first Administrative Services Manager and elevated to Administrative Services Director in 2014, she becomes the City’s ninth city manager.

September–December 2019 — City Manager Murray announces her retirement in September 2019, effective December 19, 2019 — *barely three years into the nine-year pension-payoff clock* her administration sold to voters. The City's own retirement announcement lists among her proudest achievements “the passage of Measure JJ and the restructuring of the City's unfunded pension obligations, both of which contributed towards La Palma's long term financial stability.” The architect of the promise departed long before the promise could be measured against results — and, as the audited numbers would later show, the unfunded liability kept growing.

April 1, 2020 — After a period under an interim city manager, the council hires Conal McNamara as City Manager, recruited from the City of Whittier where he had been Director of Community Development. Two months into his tenure, the council adopts the resolution cutting its meeting schedule in half. Over the five years that follow, virtually every failure documented here occurs on his watch: the permanent meeting reduction, the repeated streaming refusals, the undocumented and uninvestigated Byer complaints, the police chief carousel, the Tripepi Smith ballot-measure contract his office administered, and the treatment of the Tiny Tots program employee.

August–September 2023 — Police Chief Terry Kim retires abruptly: he announces his retirement on August 3, 2023, effective August 18, 2023 — *fifteen days' notice* — after roughly 29 years with the department and seven years as chief. The compressed timeline is visible in the City's own handling of it: there was no successor ready to be named, so City Manager McNamara had to install Captain Ron Wilkerson as Acting Chief on August 17, with the formal appointment not coming until September 25. No explanation for the sudden departure was ever offered publicly beyond the standard retirement tribute. The sequence of dates on the record: Byer reported the discrimination to department leadership in January and February 2023, while Kim was chief; Byer resigned June 1, 2023, and met with City Human Resources on June 8, raising the discrimination, retaliation, and racial-profiling allegations that records show were forwarded to senior city officials; roughly eight weeks later, the chief under whose command the complaints went undocumented and uninvestigated announced his retirement on two weeks' notice. Whether those events are connected has never been publicly addressed; no public explanation has been located, consistent with everything else in this record. Kim's departure set in motion the succession that followed: McNamara promotes Captain Ron Wilkerson, a 27-year veteran one step from retirement himself, to Chief of Police effective September 25, 2023. Wilkerson's appointment simultaneously elevates Sergeant Joe Guerrero to Captain.

September 2024 — After less than one year as chief, Wilkerson retires effective September 7, 2024, closing out a 28-year career with a single year at the department's top salary. The same day's announcement names his successor: City Manager McNamara promotes Captain Joe Guerrero — himself a 28-year veteran — to Chief of Police effective September 8, 2024.

March 2025 — Chief Joe Guerrero and the command staff of the La Palma Police Department abruptly end the La Palma Police Reserve Program. The program's longtime reserve officers — some with 20 or more years of service — are not provided with any meaningful acknowledgment or recognition for their years of service, commitment, and contribution to the department and the community; they are instead directed to turn in their department-issued equipment and leave the station. Regardless of the circumstances surrounding the decision to discontinue the program, those who served as reserve officers deserved to be treated with dignity and respect and to receive appropriate recognition for their service; the abrupt manner of the program's end left many feeling their years of service had simply been discarded. Source: correspondence to The La Palma Record from two former Reserve Program officers.

March–April 2025 — City Manager McNamara resigns to become City Manager of Whittier — the city he came from — departing almost exactly five years after his April 1, 2020 start date. Consistent with everything else in this record, his resignation was never publicly announced to La Palma residents: word of it slipped out during public comment at a Cypress City Council meeting, and the Event-News Enterprise confirmed it through the Whittier Daily News, which reported Whittier's council was scheduling his contract approval. The ENE headlined its coverage “Exodus continues from La Palma City Government”: the Assistant City Manager was

also resigning, City Clerk Kimberly Kenney had just retired, and Community Services Director Andy Ramirez had departed for another agency. At the City's final regular meeting before the news broke, parents had publicly scolded McNamara's administration over its treatment of a beloved employee who ran the Tiny Tots preschool program — the same former employee who would file suit against the City a year later. McNamara left without ever answering for the Byer failures, the chief carousel, the consultant contract, or the Tiny Tots matter; the City would spend the following months under interim management.

After August 2022 — The City changes law firms for its most important outside adviser — the City Attorney — without any competitive process. For more than three decades, La Palma's City Attorney services were provided by Rutan & Tucker, LLP, one of Orange County's largest and most established municipal law firms; the individual serving as City Attorney, Ajit S. Thind, was a Rutan partner. As recently as August 2022 the council renewed its legal-services agreement with Rutan & Tucker (a council agenda item of record), so the change came sometime after that. When Thind subsequently left Rutan for a different firm, Colantuono, Highsmith & Whatley, PC, the City's legal business followed him there — and the City's website now lists Colantuono, Highsmith & Whatley as its contracted City Attorney firm. *There is no public record of the City issuing a Request for Proposals*, conducting a market survey, or comparing rates and qualifications among firms before moving decades of institutional legal representation to the attorney's new employer. It is the same pattern that runs through the police chief promotions and the city manager hire: a consequential decision about who advises and represents the City made on the basis of a personal relationship rather than an open, documented search for the best value to taxpayers. Retaining a trusted attorney who changes firms can be entirely reasonable — but doing so with no competitive review, for a contract of this importance, is one more instance of the due-diligence vacuum that characterizes this council's major personnel and vendor decisions.

September 2, 2025 — The council unanimously appoints Peter L. Kim as the next City Manager, effective October 27, 2025, ending roughly seven months under interim management. Kim is not a professional city administrator — he is a former two-term La Palma City Councilmember and Mayor (2012–2020), the very Mayor who signed Conal McNamara's employment agreement in 2020. His professional background, per the City's own news release and press coverage, is in communications and legislative staff work — most recently a Chief Communications Officer role, previously district staff for an Orange County Supervisor and staff in the California State Assembly — with no prior experience managing a city or serving as a municipal administrator; his local-government experience consists of his elected La Palma council service and the regional board seats that came with it. The recruitment that produced him was steered by an ad hoc subcommittee of Mayor Waldman and Mayor Pro Tem Nitesh Patel, with finalists interviewed in multiple closed sessions; the City notes 87 people applied. Waldman — who had served on the council alongside Kim — praised his “terrific record of success,” in a release echoing nearly word-for-word the quote the City issued when it hired McNamara five years earlier. The structural problem is independence, and it is not subtle: in the council-manager form of government, the professional city manager is supposed to be the politically neutral check on the elected council — the City's own website touts the manager's adherence to the ICMA Code of Ethics, which is built on political neutrality and professional management. La Palma's council instead reached past *86 other applicants* to install one of its own former members — a former colleague and ally of the sitting majority, and a member of the 2016 council that made the Measure JJ promises this document audits. Whatever Kim's personal qualities, the arrangement means the person now charged with giving the council independent professional advice — and with administering any honest accounting of the council's own past decisions — is a product of that same council.

October 25, 2025 — After about thirteen months as chief, Guerrero retires, ending a 29-year career with roughly one year at the top rank. The Event-News Enterprise notes the pattern in its own coverage: he is the latest La Palma police chief since 2023 to serve approximately one year and retire. *The department has now cycled through four chiefs in about 26 months* — Kim, Wilkerson, Guerrero, and Interim Chief Todd Mattern — spanning precisely the period in which the Byer complaints were buried, litigated, and lost.

September 25, 2023 – October 25, 2025 — Laid end to end, the City's own announcements document the full arc of a single officer's rise and departure: Sergeant Joe Guerrero is promoted to Captain effective September 25, 2023; promoted again, from Captain to Chief of Police, effective September 8, 2024; and retires as Chief effective October 25, 2025 — *Sergeant to Captain to Chief to retired in 25 months.*

Why the one-year chief tenures matter financially: both Wilkerson and Guerrero joined the department in 1996, making them “classic” (pre-PEPRA) CalPERS members whose lifetime pensions are calculated from their final compensation. Promoting a captain on the cusp of retirement to chief for roughly a single year permanently bases his pension on the chief's salary rather than a captain's — a benefit paid for decades out of the same CalPERS accounts whose unfunded liability has grown 30% since Measure JJ passed. California public finance literature refers to this compensation effect — a late-career promotion that permanently resets a pension's calculation base — as pension spiking, without regard to why any individual promotion was made. This document does not allege that spiking the pension was the purpose of either promotion; only the City Manager and council who approved the compensation for these successions can speak to intent; what the record shows is that it happened the same way, twice in a row, back-to-back, under the same city manager — while that same city government was telling residents from the dais that its pension debt had “gone down.” The council marked each retirement with tributes and never publicly discussed the pension cost of either one-year chief appointment.

December 9, 2025 — The council selects Nitesh Patel as Mayor for 2026 the same day a jury returns its verdict in *Byer v. City of La Palma*. See Litigation, below.

4. Litigation: Byer, Casey, and Torres

Covers three lawsuits against the City: two brought by its own former employees — the underlying complaints, the verdict, the appeal, and the second suit that followed four months later — and a third, a wrongful death suit brought by the family of a motorist killed when a fleeing suspect ran a red light during a multi-agency police pursuit and collided with her vehicle.

January–June 2023 — Inside the La Palma Police Department, Officer Ross Byer reports discriminatory treatment by his supervisor to department leadership twice (January and February 2023), including an allegation that the supervisor said he “wanted a police organization made up entirely of Korean Americans” and — most seriously — directed officers to target Black drivers for traffic stops. Sworn testimony later establishes: *no formal investigation was initiated at any level, the complaint was not documented, and no witnesses were interviewed.* Records show the allegations were forwarded to senior city officials. No separate investigation followed. Byer resigns June 1, 2023, and raises the allegations directly with City Human Resources on June 8. Still nothing.

December 18, 2024 — A separate, unrelated matter begins: at approximately 12:49 p.m., Marianne Casey is lawfully driving southbound on Moody Street and enters the intersection with La Palma Avenue on a green light. According to the operative complaint, the incident originated with a suspected shoplifting call in Fullerton; the suspect, Anthony Hanzal, fled from law enforcement, and multiple agencies — Fullerton, Buena Park, and La Palma police — became involved in the pursuit at various points. A La Palma police sergeant is alleged to have observed Hanzal traveling on La Palma Avenue at a high rate of speed (estimated around 90 mph) and activated emergency lights and siren; Hanzal did not yield. Hanzal then entered the Moody Street intersection against a red signal and collided with Casey's vehicle, killing her. Casey's husband and two adult children timely presented government claims to the Cities of La Palma, Fullerton, and Buena Park beginning in February 2025; all three cities rejected the claims (La Palma: March 4, 2025; Fullerton: April 3, 2025; Buena Park: June 30, 2025). Casey's heirs filed suit on July 15, 2025.

December 9, 2025 — An Orange County jury returns an *\$8.4 million verdict* against the City of La Palma in *Byer v. City of La Palma* (appeal pending) — \$3.92 million in past noneconomic damages and \$4.48 million in future noneconomic damages, per the signed verdict forms — finding the City liable for discrimination, retaliation, and failure to prevent discrimination. At trial, the City had argued Byer's emotional distress stemmed

from the 2020 death of his daughter, contended damages should be capped at \$35,000, and **offered \$75,000 to settle. The jury's answer was 112 times the City's offer.** On the same date, the City Council selects Nitesh Patel as Mayor for 2026.

March 2026 — New City Manager Peter Kim — the former councilmember installed by the sitting majority six months earlier — acknowledges the verdict but declines to discuss details. The conduct at issue occurred under former City Manager McNamara, now running Whittier. The police department is led by an interim chief. The City files an appeal on March 27. Residents formally call for an independent external investigation of the department's complaint-handling practices, writing that the failures “are not speculative — they are established under oath,” and warning the problems may not be isolated. Los Cerritos Community News files a Public Records Act request for complaint and investigation records. The council has made no commitment to an independent investigation.

March 13, 2026 — The heirs of Marianne Casey — husband David Casey and adult children Daniel White and Sarah Miro, her only heirs under California's intestate succession rules — file a First Amended Complaint in Casey v. City of Buena Park, City of Fullerton, City of La Palma, Anthony Hanzal, and Caitlin Joy (Orange County Superior Court Case No. 30-2025-01497184-CU-PA-NJC), naming Hanzal's alleged direct negligence and, as to the three cities, a single wrongful-death cause of action under Government Code § 815.2 — the statute making a public entity liable for its employees' negligence within the scope of employment. The complaint does not yet identify which agency initiated the pursuit before what it describes as a “red channel” broadcast, and alleges on information and belief that a La Palma sergeant heard that broadcast from Buena Park before observing and pursuing Hanzal. It further alleges that reasonable alternatives to a close high-speed pursuit through a midday intersection — including terminating the chase in favor of surveillance, containment, or air support — were available, and that whether officers considered ending the pursuit before the collision is a matter for discovery. To the extent the cities claim immunity under Vehicle Code § 17004.7, the complaint alleges that immunity is contingent on proof each city had adopted a written pursuit policy meeting the statute's minimum standards and provided the required annual training — proof the complaint says is uniquely within the cities' own records and will be tested through discovery. The complaint seeks wrongful death damages according to proof, with no specific dollar figure pled in the operative complaint; the claims Casey's heirs separately presented to each city in 2025, which the FAC's factual allegations track closely, valued the claim at **\$30,000,000**. (These are allegations in a pending complaint; no defendant's answer has been reviewed for this document, and nothing here should be read as a finding that any city or its officers were negligent.)

As of August 2026 — The City's appeal of the \$8.4 million Byer verdict remains pending; no ruling has been issued and the judgment has not been resolved. Post-judgment interest continues to accrue on the award while the appeal is pending, and municipal appellants prevail on appeal in only a minority of cases — meaning the City's exposure on this verdict, already substantial, may grow rather than shrink before the matter is finally resolved.

April 8, 2026 — A second employee lawsuit is filed against the City: Torres v. City of La Palma, Orange County Superior Court Case No. 30-2026-01561451-CU-OE-NJC. Misty Torres, who ran the City's Tiny Tots preschool program as a Recreation Specialist from May 2018 until February 2025, alleges the City systematically failed to pay her for hours worked. According to the complaint, the City scheduled her for four-hour class blocks while the program's actual workload ran roughly 7 a.m. to 5 p.m.; she performed about 15 hours of unpaid work per week, which was “common knowledge and was discussed in staff meetings.” When she told management she couldn't complete the work in her allowed hours, the City's alleged response was to cap her hours at 30 per week in mid-2024 while leaving the workload unchanged, tell her to stop working from home, and threaten that she could be fired if she stayed past her available hours — a structure the complaint says “knowingly forced” her to choose between unpaid off-the-clock work or letting the children's program fail. The complaint further alleges the City repeatedly left her alone with twenty-four preschool-aged children for most or all of the class day in January and February 2025 — including on a day she was sick and vomiting — making

legally required meal and rest breaks impossible. She alleges the City had previously submitted a resignation on her behalf without her consent, and when she resigned in February 2025 with two weeks' notice citing the toll on her health, the City ended her employment the next day, before her stated effective date, without paying all wages due. **She seeks approximately \$180,000-plus** in unpaid wages, premiums, liquidated damages, and penalties, before interest and attorneys' fees. And the City's response followed a familiar pattern: when Torres submitted a written claim in September 2025, the City rejected it as **"untimely"** without addressing the merits, declined her counsel's request to identify any legal authority for its position, and forced her to sue. (These are allegations in a pending complaint; the City has not yet answered.)

June–July 2026 — The case moves to federal court. On June 8, 2026, Torres files a First Amended Complaint that adds a federal claim for failure to pay overtime wages under the Fair Labor Standards Act — a change that moves the case out of Orange County Superior Court and into the U.S. District Court for the Central District of California, Southern Division, where it is now pending as *Torres v. City of La Palma*, Case No. 8:26-cv-01754-FWS-KES. On July 14, 2026, the City — represented by City Attorney Ajit Thind's firm, Colantuono, Highsmith & Whatley — files its Answer, formally denying the case for the first time. The Answer admits several background facts: that Torres worked for the City for several years beginning on or about May 8, 2018, that she worked as a Recreation Specialist in the Tiny Tots Program, and that she attempted to submit a pre-litigation claim to the City on September 2, 2025. Beyond those admissions, the City denies essentially every substantive allegation — including the claims about unpaid hours, the capped schedule, the denied meal and rest breaks, and the circumstances of her departure. The City raises sixteen affirmative defenses, among them that it **"paid all wages due and owing"**; that Torres's claims are time-barred under the FLSA's statute of limitations; that some of her work may fall under FLSA exemptions; that she failed to exhaust administrative remedies or comply with the pre-litigation claim requirement — echoing the City's earlier rejection of her claim as "untimely"; and several boilerplate equitable defenses (laches, waiver, estoppel, consent, failure to mitigate). No trial date has been set. (The Answer is the City's legal position in an active, unresolved case — not a court finding on the merits — and nothing here should be read as resolving which side's account of the underlying facts is correct.)

5. Public Meeting Access and Transparency

Covers the 2020 meeting-frequency cut, the repeated refusals to livestream, the agenda-gatekeeping rule, and the 2026 compliance that followed only once state law removed the choice.

June 2, 2020 — Citing the COVID-19 emergency, the City Council adopts Resolution 2020-29, cutting regular council meetings in half — from the twice-monthly schedule the city had maintained throughout its history to once per month. The City's own later announcement admits the change was made “in an effort to conduct City business during the COVID-19 pandemic” and simply “has become current practice.” Unlike virtually every other California city that consolidated meetings during COVID, La Palma never restored its normal schedule. The result: the public's regular opportunities to address its government on the record were permanently **cut from roughly 24 per year to 12** — and in practice fewer, as the single July meeting is routinely cancelled.

February 7, 2023 — Councilmember Janet Keo Conklin urges the council to consider video livestreaming of public meetings. Councilmembers Nitesh Patel, Mark Waldman, and Debbie Baker oppose it. The council rejects even a proposal by Councilmember Goodman to have staff merely research streaming options without committing any city funds. Patel's stated reasoning: “enough information is out there” to reach elderly residents.

2023–2024 — A Voice of OC / Chapman University investigation grades all 34 Orange County cities on public meeting accessibility. Every city receives an A or B — except La Palma and Rancho Santa Margarita, the only two cities in the county refusing to livestream video. **Each receives a D.** A First Amendment Coalition legal fellow says the lack of virtual access “keeps residents in the dark.”

November 5, 2024 — The same council approves **roughly \$80,000 in IT upgrades** for City Hall — Microsoft Office, a new phone system — while continuing to claim the city cannot afford video streaming. Cities with

comparable budgets (Stanton, Los Alamitos) had been streaming for years. Waldman's on-record explanation for the contradiction: "It's different stuff."

December 2024 – January 2025 — At the council's December 10 meeting, Councilmember Janet Keo Conklin proposes adding video directly — "I propose we now look into [adding] audio and visual," she says — pointing to Census data showing roughly one in five La Palma residents are of retirement age, and telling Voice of OC afterward that she hoped to bring a proposal forward for greater transparency and accountability. No colleague seconds a further push, and the council instead adopts, 4-1, a "Code of Conduct" requiring **two council members' consent** to place any item on the public agenda — a rule that structurally silences the lone member who kept raising transparency. The pattern repeats at the January 14 meeting, where Keo Conklin's motion to direct staff to add video dies again for lack of a second. "So they don't want accountability or transparency. What is wrong with video streaming?" she says afterward. Mayor Waldman had separately told Voice of OC that few people listen to the audio stream anyway. When she presses the question "what are we hiding?" at the dais, the mayor declares a five-minute recess.

April–July 2026 — Only now — because **SB 707**, the state's rewrite of the Brown Act effective **July 1, 2026**, mandates two-way remote public participation — does the council unanimously direct staff to implement video, after Voice of OC had reported that every other Orange County city — all 32 of the others — already offered video livestreaming while La Palma provided audio only. The staff report accompanying the item tells the council that state lawmakers are expected to eventually require video statewide regardless of SB 707. The city contracts with Western Audio Visual — a vendor and target date Voice of OC later confirmed — projecting the system will be running by August 2026. After three years of refusals, the council relented only when Sacramento removed the choice. Mayor Patel — who opposed streaming in 2023, 2024, and 2025 — now calls it "a great thing to do."

August 3, 2026 — One day before the council's regular August 4 meeting, the City posts on its official Facebook page that the video livestreaming system it says the council approved on June 2, 2026 will not be ready as promised. Citing "equipment delays" — with no further detail offered — the post states the City now anticipates video streaming will not begin until the **October 6, 2026** meeting, pushing back by at least two months the August 2026 target reported when the council directed staff to pursue the system in April. The disclosure arrives not as a proactive announcement timed for advance public notice, but as a same-week social media post the day before the very meeting residents might otherwise have expected to be the first livestreamed session. It is the latest instance of a now-familiar pattern in this record: a public-access commitment whose setbacks surface only at the last possible moment.

The threads, and the through-line

Broken fiscal promises. Voters were sold Measure JJ in 2016 with specific, quantified commitments: pension debt paid off in 9 years, \$20 million saved, reserves rebuilt, a stabilization fund, restored services, a lower utility tax. A decade later, the pension liability is nearly 30% higher on the audited (GASB) basis cited above, and CalPERS' own June 30, 2024 actuarial valuations — measuring the liability on a different, funding basis — independently show a combined unfunded liability of \$25.3 million that CalPERS' own current schedule does not project to be paid off until roughly 2040–2041, not the promised nine years; no accounting of promises-versus-results has ever been presented to the public. The city manager who championed the measure retired three years into the nine-year clock; when a resident finally asked about the debt in 2025, the interim city manager didn't know the number and the future mayor gave a false answer.

Institutional failure with an \$8.4 million price tag — and a pattern. A police officer's discrimination complaints — including an allegation of racially targeted traffic stops — were never documented, never investigated, and never acted on, even after reaching senior city officials and Human Resources. A jury found the City liable on every theory presented. Four months after that verdict, a second former employee sued: the longtime head of the City's own preschool program, alleging years of unpaid off-the-clock work that was openly

discussed in staff meetings, hour caps imposed instead of solutions, twenty-four preschoolers left with a single sick staffer, and a wage claim the City rejected on a procedural technicality without ever engaging the merits. Two different employees, two different departments, the same institutional reflex: when a worker raises a problem, the City doesn't investigate it, doesn't fix it, and doesn't answer it — it stonewalls until a courtroom forces the issue. In Byer's case that reflex cost taxpayers \$8.4 million (plus post-judgment interest while the appeal is pending, against long odds for municipal appellants). The Torres case — roughly \$180,000 in claims plus mandatory attorneys' fees if she prevails on even part of it — is now working through the same pipeline, and the trial record and resident correspondence in Byer already warned the problems “may not be isolated.” The council has still not committed to the independent investigation residents demanded. Separately, the City also faces a pending \$30 million wrongful-death claim in *Casey v. City of La Palma et al.*, arising from a December 2024 multi-agency police pursuit — a claim unrelated to the employment failures documented here, but one that adds to the City's total litigation exposure.

Leadership churn instead of accountability — with a pension price tag. The city manager who sold Measure JJ retired three years into its nine-year promise. Her successor, Conal McNamara, presided over five years spanning nearly every failure in this document, then resigned to run the city he came from — a departure never announced to La Palma residents, which leaked out at a neighboring city's council meeting amid what the local paper called an “exodus” that also included the assistant city manager, the city clerk, and the community services director. The police department cycled through four chiefs in roughly 26 months — Kim (who departed abruptly on fifteen days' notice, weeks after the Byer allegations reached senior city officials, with no public explanation ever given), then Wilkerson (less than a year as chief), then Guerrero (about thirteen months), then an interim — spanning exactly the period in which the Byer complaints were buried, litigated, and lost. Both one-year chiefs were 1996-hire classic CalPERS members whose lifetime pensions are set by final compensation, so each brief promotion to the top salary permanently raised a pension that taxpayers will fund for decades through the same accounts already \$23.6 million underwater — a structure commonly criticized as pension spiking, approved twice consecutively by the same city manager without any public discussion of its cost. No elected official has taken responsibility for any of it — the councilmember who misstated the city's largest liability from the dais was elevated to Mayor days after the jury verdict, and the vacancy McNamara left was filled not with an independent professional administrator but with a former councilmember and mayor from the majority's own ranks, selected by a subcommittee of Waldman and Patel, who had never managed a city in his life. And when the City Attorney moved firms, decades of the city's legal business moved with him to his new employer with no competitive review at all. Three police chiefs promoted with no external search, a city manager drawn from the council's own ranks over 86 other applicants, and a thirty-year law firm relationship handed to a new firm without an RFP — the common thread is a council that treats major professional appointments as matters of personal relationship rather than open, documented diligence.

Measure W: Who Funded It and Who Benefited — Not the Council's First Attempt. Measure W was placed on the ballot by the very incumbents it benefited, over the objection of the one member who noted residents never asked for it. This was not the council's first attempt: in 2019, a nearly identical proposal — extending terms from two to three, cutting the cooling-off period from four years to two — was requested by Councilmember Patel, advanced to a formal ballot-drafting vote 3-0, and only tabled after eleven residents turned out on September 3, 2019 to oppose it, including letters from a former councilmember and a longtime resident. Mayor Goodman moved to table it himself once the opposition was on the record. Five years later, with less advance public attention on the issue, essentially the same proposal returned as Measure W — and this time it passed. The campaign to pass it ran on two parallel tracks, and the public paid for one of them. On the public track, the City retained Tripepi Smith — under a contract signed before any public vote — and spent over \$18,000 in General Fund money on consultant-drafted ballot language and “outreach” materials that were branded “Election Reform and Voter Choice,” framed entirely around benefits, and never once disclosed that the measure handed sitting incumbents a fresh set of three terms. On the private track, the sworn campaign filings show the Yes committee was run out of Councilmember Nitesh Patel's home with Patel himself as treasurer,

funded by the money of at least three sitting council members and the Patel family, with the Orange County firefighters' union's \$5,500 routed through the candidate committees of Councilmember Baker and Patel's brother Vikesh — while Nitesh Patel sat on, and now serves as Vice Chair of, the Orange County Fire Authority board that governs that union's members' budget and labor relations. The committee's money was then spent almost entirely on slate mailers dressed up as independent voter guides. No agreement between the union and any official has been shown, and none is alleged here — but the appearance created by that money flow is exactly what disclosure laws exist to surface, and voters could learn any of this only by filing public records requests. And while the campaign ran, the City's enforcement machinery moved unevenly around it: the City Manager personally removed a “No on W” sign, the City Attorney admitted in writing that the sign-permit law had gone unenforced “for several years,” announced mid-campaign — in response to a resident's legal demand — that the rule would be amended away, and answered that demand in part by disparaging the resident who made it. The rule was erased five weeks after the votes were counted.

A structural war on transparency. Cut the meetings in half in 2020 and never restore them. Refuse video streaming in 2023. Refuse a free study of it. Refuse again in 2024 while spending \$80,000 on other technology. Adopt a rule requiring the majority's permission to even agendize a topic. Earn one of only two D grades in Orange County for meeting accessibility. Let a police chief depart on fifteen days' notice and a city manager depart with no announcement at all. Comply with video streaming only in 2026, when a state law made refusal illegal. At every decision point over six years, when this government could choose between more public visibility and less, it chose less — and offered shifting excuses (cost, low interest, “enough information is out there”) that its own spending decisions contradicted.

The through-line is not incompetence on any single issue. It is a consistent operating philosophy: minimize scrutiny, control the narrative, avoid the accounting. Fewer meetings mean fewer questions. No video means no record. Gatekept agendas mean unwelcome topics never surface. Unannounced departures mean no exit interviews. Unanswered press inquiries mean no follow-up. And when the public did get a clear look — through a jury trial, through campaign finance filings and consultant invoices pried loose by records requests, through independent journalism, and through the council's own certified minutes of its 2019 term-limit debate — what it saw each time contradicted what the city had been telling residents.

What voters can do

Ask every District 2 and District 4 candidate these questions, on the record:

1. Will you vote to restore twice-monthly regular council meetings? (This requires only a council resolution — three votes could do it at any meeting.)
2. Will you vote to commission a truly independent, external investigation of the police department's complaint-handling practices, with authority to review records and interview personnel?
3. Will you direct staff to present a full public accounting of every Measure JJ promise made in 2016 against actual results — pension payoff, the \$20 million in savings, reserves, the stabilization fund, and the Utility Users Tax?
4. Will you vote to repeal the two-member consent requirement for placing items on the council agenda?
5. Will you support posting all campaign finance filings on the city website, as neighboring cities already do?
6. Did you support or oppose Measure W, and did you or your campaign receive support from any sitting council member or their family?
7. Will you commit to never spending General Fund money on consultants to draft or promote ballot measures that extend council members' own tenure — and to disclosing, in any city-funded material about a future measure, every provision that benefits sitting incumbents?

8. Before approving any future promotion of a near-retirement employee into a higher-paid position, will you require a public staff report disclosing the projected lifetime pension cost of that promotion?
9. Do you believe the City Manager should be an independent professional administrator rather than a former council colleague — and will you support recruiting professional city management for future vacancies?
10. Will you support amending Measure W so that years already served count toward the term limit — closing the provision that lets a sitting member serve up to 20 consecutive years without a break?
11. Will you support establishing the Pension Stabilization Fund promised to Measure JJ voters in 2016 — and on what timeline?
12. Will you require a competitive, externally run search — rather than an internal appointment — for the next City Manager, Police Chief, or City Attorney vacancy?

These questions are drawn directly from documented gaps in the public record. They are offered so voters can ask their own questions of candidates — not as an implied answer.

References

Organized below by source and document type, rather than by topic, so the underlying evidentiary basis for this document is easy to audit. Primary sources (government records, court filings, sworn campaign filings, and correspondence) are listed first; independent news reporting follows.

I. Government and Court Records (Primary Sources)

A. City of La Palma — News Releases

- “La Palma City Manager Announces Retirement” (September 2019)
- “La Palma Police Chief Terry Kim Announces Retirement, Captain to be Named Acting Chief” (August 2023) — <https://www.lapalmaca.gov/ArchiveCenter/ViewFile/Item/3223>
- “La Palma Chief of Police Ron Wilkerson Retires; Captain Joe Guerrero Appointed Chief of Police” (August 2024) — <https://www.lapalmaca.gov/CivicAlerts.aspx?AID=1092&ARC=2869>
- “City Council Changes” news announcement (November 2024) — <https://www.cityoflapalma.org/CivicAlerts.aspx?AID=1096>
- “La Palma City Council Appoints Peter L. Kim as City Manager” (September 2025) — <https://www.lapalmaca.gov/Archive/ViewFile/Item/3419>
- “La Palma Mayor Nitesh Patel was elected Vice Chair of the Orange County Fire Authority”

B. City of La Palma — Agenda Items, Ordinances, and Resolutions

- Agenda Item No. 6, City Manager Appointment and Employment Agreement, Conal McNamara, effective April 1, 2020 — https://www.lapalmaca.gov/DocumentCenter/View/9894/Item-6_City-Manager-Appointment
- City Council agenda item, August 2022, renewing/amending the legal-services agreement with Rutan & Tucker, LLP
- Ordinance amending Chapter 44 pertaining to signs, adopted December 7, 2021 (signed by Mayor Nitesh Patel)
- Purchase Order #22959, June 12, 2024 (Tripepi Smith, “Ballot Measure Services,” General Fund account 001-120-6000)
- Ordinance No. 2024-04, first reading November 5, 2024, adopted December 10, 2024

C. City of La Palma — Certified Council Meeting Minutes

- City of La Palma Agenda Item, Term Limits Study Session, referencing Measure O (1996), which “was passed by nearly 80%” of voters and established two four-year terms with a four-year waiting period before returning to the ballot

- Minutes of the Regular Meeting of the La Palma City Council, August 20, 2019 (Item 8, “CONTINUED: Study Session: Council Member Request – Term Limits”; motion to direct staff to prepare a March 2020 ballot measure carried 3-0, Kim and Patel abstaining)
- Minutes of the Regular Meeting of the La Palma City Council, September 3, 2019 (Item 7, Resolution No. 2019-40; eleven public speakers, nearly all opposed; motion to table indefinitely carried unanimously, 5-0)
- Minutes of the Regular Meeting of the La Palma City Council, June 2, 2020 (adoption of Resolution 2020-29 amending regular meeting frequency) — <https://www.lapalmaca.gov/ArchiveCenter/ViewFile/Item/2862>
- Agendas and minutes archive (verify meeting counts and July cancellations by year) — <https://www.lapalmaca.gov/Archive.aspx?AMID=165> and <https://www.lapalmaca.gov/72/Agendas-and-Minutes>

D. City of La Palma — Website and Program Pages

- City Manager page (ICMA Code of Ethics commitment) — <https://www.lapalmaca.gov/657/City-Manager>
- City Attorney page, listing Colantuono, Highsmith & Whatley, PC as the contracted City Attorney firm — <https://www.lapalmaca.gov/782/City-Attorney>
- “Term Limits Ballot Measure W (2024)” — <https://www.lapalmaca.gov/795/Term-Limits-Ballot-Measure-W-2024>
- Elections page (Districts 2 and 4, November 3, 2026) — <https://www.lapalmaca.gov/103/Elections>
- Annual Comprehensive Financial Reports — <https://www.lapalmaca.gov> (Transparency / Budgets)

E. Court Filings

- Complaint for Monetary Damages, Misty Torres v. City of La Palma, Orange County Superior Court Case No. 30-2026-01561451-CU-OE-NJC, filed April 8, 2026 (Gonzalez Weerasuriya, APC)
- Jury verdict, Byer v. City of La Palma, Orange County Superior Court (December 9, 2025; \$8.4M — approx. \$3.9M past, \$4.5M future damages)

F. Sworn Campaign Finance Filings (FPPC, on file with the La Palma City Clerk)

- Yes on Measure W (FPPC ID #1474110), Form 460 Recipient Committee Campaign Statement, period 9/22/2024–10/19/2024, filed 10/24/2024
- Yes on Measure W, Form 497 24-Hour Contribution Reports, October 2024
- Debbie S. Baker for La Palma City Council District 1 2024 (FPPC ID #1466502), Form 460, filed 10/24/2024
- Mark Waldman for La Palma City Council District 5 2024 (FPPC ID #1472715), Form 460, filed 10/24/2024
- Vikesh Patel for La Palma City Council 2024 District 3 (FPPC ID #1470137), Form 470 Short Form, filed 10/21/2024

G. Regional and County Government Records

- Orange County Registrar of Voters, Measure JJ ballot materials, arguments and impartial analysis (November 2016) — https://ocvote.gov/fileadmin/user_upload/elections/gen2016/measures/8523.pdf
- Orange County Registrar of Voters, Measure W full text, impartial analysis, and arguments (November 2024)
- Orange County Fire Authority, Board of Directors and Budget and Finance Committee agendas and minutes (2026) — <https://ocfa.org/AboutUs/BoardOfDirectors.aspx>

H. Attorney Correspondence (Primary Source — in the possession of residents' counsel)

- Letter, Adam Sechooler (AEMS Trial Firm, APC) to City Manager Conal McNamara, October 1, 2024
- Letter, City Attorney Ajit S. Thind (Colantuono, Highsmith & Whatley, PC, File No. 42034.0011) to Adam Sechooler, October 15, 2024
- Letter, Adam Sechooler to Ajit S. Thind, October 22, 2024

I. Vendor / Consultant Records (obtained via Public Records Act request)

- Agreement for Consulting Services between the City of La Palma and Tripepi Smith, executed May 8, 2024
- Tripepi Smith Invoices #12490 (May 2024, \$4,893.75), #12654 (June 2024, \$7,116.50), #12816 (July 2024, \$3,345.00), #13013 (August 2024, \$1,368.75), and #13241 (September 2024, \$1,367.50)

- Consultant work product: final ballot question text; June 2024 City news release; FAQ sheet (English, Spanish, Korean); utility bill insert; citywide mailer; and drafts of the ballot “Argument in Favor” (redacted) and “Rebuttal to Argument Against”
- City/consultant calendar log showing recurring weekly check-in calls beginning May 2024

J. Applicable Legal Standards

- Cal. Gov. Code § 54964 (public funds and ballot advocacy)
- *Vargas v. City of Salinas* (2009) 46 Cal.4th 1

K. CalPERS Actuarial Valuations and Campaign Financial Materials (Primary Sources)

- California Public Employees’ Retirement System, Actuarial Valuation for the Rate Plans of the City of La Palma in the Safety Risk Pool as of June 30, 2024 (required contributions for FY 2026–27)
- California Public Employees’ Retirement System, Actuarial Valuation for the Rate Plans of the City of La Palma in the Miscellaneous Risk Pool as of June 30, 2024 (required contributions for FY 2026–27)
- Yes on Measure JJ — La Palma, “What Fiscally Sound Looks Like” (campaign webpage, archived; page states “Last edited May 5, 2021”)

II. Independent News Reporting

A. Event-News Enterprise

- “La Palma Council votes 4-1 to fund ballot initiative to expand term limits” — reporting that “almost 80 percent of La Palma voters approved” the original 1996 term-limits measure
- “Retiring City Manager Laurie Murray Recognized for 23 Years of Service” (January 2020)
- “Ron Wilkerson sworn in as La Palma Chief of Police” (October 2023)
- “La Palma authorities refuse to enforce ordinance to remove supportive signs” (October 2024)
- “Documents reveal La Palma Council members funding ‘Yes’ on ‘W’ term limit expansion push” (November 2024)
- “La Palma Mayor prompts pause after Council member questions reasons for lack of transparency” (January 2025)
- “Exodus continues from La Palma City Government” (March 2025)
- “La Palma looks to one of its own, appointing former Mayor Peter L. Kim as City Manager” (September 2025)
- “La Palma Police Chief set to retire” (October 2025)
- “Activist takes La Palma official to task for pension comments” (August 2025) — UAL figures: \$18,212,933 FY 2016-17 → \$23,645,977 FY 2023-24, +29.8%, per the City’s audited ACFRs
- “Former Tiny Tots program director sues La Palma for unpaid wages and damages”
- “La Palma ordered to pay officer \$8.4 million after losing reverse discrimination lawsuit” (April 2026)

B. Voice of OC

- “Why Won’t Officials in Two OC Cities Video Livestream Their Public Meetings?” (October 2024)
- “Will La Palma See 20-Year Politicians?” (November 2024)
- “No Plans in Sight for Video Streaming in La Palma” (December 2024)
- “La Palma City Hall Resists Residents Watching Official Deliberations From Home” (January 2025)
- “La Palma Residents Push for City Council Meeting Video Livestreams” (May 2025)
- “La Palma Leaders Look to Livestream City Council Meeting Video” (April 2026, SB 707 compliance)
- “OC Cities Continue Grappling With Call-in Public Comment” (June 2026, SB 707 / Western Audio Visual)

C. Los Cerritos Community News

- “La Palma City Manager Announces Retirement” (September 2019)
- “Questions Mount Over La Palma Police Oversight After \$8.4 Million Verdict” (April 16, 2026)

D. PublicCEO

- “La Palma Chief of Police Joe Guerrero to retire” (October 2025)

E. Law Firm / Professional Profiles

- Colantuono, Highsmith & Whatley, PC, attorney profile, Ajit S. Thind — <https://chwlaw.us/attorney-post/ajit-s-thind/>

III. Other Data Sources

- Transparent California, City of La Palma salary and pension data — <https://transparentcalifornia.com/salaries/la-palma/>

A note on sourcing: the Measure W campaign finance facts are drawn directly from the FPPC Form 460, 497, and 470 filings on file with the La Palma City Clerk; the Tripepi Smith facts are drawn directly from the executed consultant agreement, purchase order, invoices, calendar records, and work product produced by the City under the Public Records Act; the Torres allegations are drawn directly from the filed complaint; and the 2019 term-limit account is drawn directly from the City Council's own certified minutes of August 20 and September 3, 2019 — all cited above. Allegations in the Torres complaint are allegations in a pending case the City has not yet answered, and are labeled as such above. This document states what the consultant records show and identifies the applicable legal standard on public funds and ballot advocacy; whether the City's spending crossed that line is a determination for the FPPC or a court, and this document does not assert that it did.